BRENDAN NGWA NFORBI
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UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGWA NFORBI,

Plaintiff,

v.

SANTIAGO MEZA-GONZALEZ (CHP #023295); JOSE MELANO (CHP #023054); and DOES 1-10,

Defendants.

Case No. 4:26-cv-08271-ASK

PLAINTIFF'S ADMINISTRATIVE MOTION — ORDER DIRECTING DAG HAIYANG A. LI TO ACCEPT SERVICE FOR MEZA-GONZALEZ

Civil L.R. 7-11; Fed. R. Civ. P. 4(e)(1), 4(m); Cal. Code Civ. Proc. § 413.30

Judge: Hon. Ajay S. Krishnan
Related: 4:26-cv-05953-ASK

TO THE COURT, TO DEFENDANT JOSE MELANO, AND TO DEPUTY ATTORNEY GENERAL HAIYANG A. LI:

Plaintiff BRENDAN NGWA NFORBI, appearing in propria persona, moves under Civil Local Rule 7-11, Federal Rule of Civil Procedure 4(e)(1) and 4(m), and California Code of Civil Procedure section 413.30 for an order directing Deputy Attorney General Haiyang A. Li to accept service of process on behalf of Defendant Santiago Meza-Gonzalez. The facts are in the accompanying declaration.

I.

THE SERVICE GAP

Melano has been served. Meza-Gonzalez has not. Both are California Highway Patrol officers. Both had identifiable duty stations on the summonses this Court issued August 10, 2026 (Dkt. 3). Process server Clifford Black served Melano on August 14, 2026, at CHP South Sacramento, 6 Massie Court, through Officer Reed, who is designated to accept process for the Patrol at that station. The AO 440 return was filed as Dkt. 5-1 and entered August 31, 2026 as Document 12 after this Court related the case to *Newanforbi v. Serrato*, No. 4:26-cv-05953-ASK, and reassigned it as No. 4:26-cv-08271-ASK. This motion does not touch that service.

Meza-Gonzalez has not been produced at CHP Modesto Area, 4030 Kiernan Avenue — the address on his issued summons and his assigned post. Plaintiff's August 13 Stanislaus County Sheriff SER-001 produced no Rule 4(l) return. A private process-server packet went to the same station on August 25. The papers stop at the duty station. The officer is not produced. This is the second case on this November 1, 2024 incident in which his service has lagged behind Melano's. In Alameda Superior Court No. 26CV168913, the State and Melano were served March 25, 2026; Meza-Gonzalez required a court-ordered extension to May 4, 2026.

II.

DAG LI HAS REPRESENTED THESE OFFICERS THROUGHOUT

Haiyang A. Li, Deputy Attorney General, 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, Haiyang.Li@doj.ca.gov, has appeared for Meza-Gonzalez and Melano — and for the State and the Patrol — in every civil case on this incident.

1. *Newanforbi v. State of California / CHP et al.*, E.D. Cal. No. 2:25-cv-01460-DC-CSK. Li filed the December 10, 2025 Rule 12(b)(6) motion and the January 5, 2026 reply for the

State, CHP, Meza-Gonzalez, and Melano. Plaintiff served the April 21, 2026 Objections and July 7, 2026 Notice of Supplemental Authority on him. On April 9, 2026, Li consulted those same clients on 28 U.S.C. § 636(c) consent. That case was dismissed without prejudice August 15, 2026, after this action was filed.

2. *Newanforbi v. Meza-Gonzalez et al.*, Alameda Super. Ct. No. 26CV168913. Li noticed a demurrer April 2, 2026; met and conferred April 9; negotiated and filed a stipulated stay April 13–14; and in June 2026 opposed the U-visa certification motion for the same defendants. That case was dismissed without prejudice August 15, 2026.

3. *Newanforbi v. Serrato*, N.D. Cal. No. 4:26-cv-05953-ASK. Li is counsel of record for Captain G. Serrato — these officers' commander — before this Court, on claims from the same incident. He filed Serrato's motion to dismiss August 26, 2026 (Dkt. 18). This Court related the actions August 24, 2026.

Li already has actual notice of this lawsuit, already has a lawyer-client relationship with this officer on this incident, and already appears before this Court on the related case. The remaining gap is a Rule 4 return as to the one officer who has not been produced at his station.

III.

THE COURT MAY DIRECT THIS MANNER OF SERVICE

Rule 4(e)(1) permits service by following California law. Section 413.30 provides that the court "may direct that summons be served in a manner which is reasonably calculated to give actual notice to the party to be served and that proof of such service be made as prescribed by the court." That is the constitutional floor as well. *Mullane v. Central Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950). The Ninth Circuit approves alternative service when ordinary methods have not finished the work, so long as the method is reasonably calculated to give notice. *Rio*

Properties, Inc. v. Rio Int'l Interlink, 284 F.3d 1007, 1016-17 (9th Cir. 2002).

Directing Li to accept the summons and the operative First Amended Complaint, and treating delivery to him at the Spring Street address and email he uses as counsel for these officers, is reasonably calculated to give Meza-Gonzalez actual notice. Li has been this officer's lawyer on this incident since at least December 2025. Plaintiff is not asking the Court to treat Li as an already-appointed Rule 4(e)(2)(C) agent. Li has not appeared in *this* action, because Meza-Gonzalez has not been served. Plaintiff asks the Court to *direct* that service be completed by delivery to the lawyer who has represented this defendant throughout. That is the least intrusive way to close a gap duty-station service has not closed.

Civil Local Rule 7-11 is the right vehicle. Completing Rule 4 as to one defendant so the related cases can move on the same calendar is a miscellaneous administrative matter. A 35-day noticed motion would add a month of delay the Court can avoid on the papers.

A stipulation could not be obtained before filing because Li has not appeared here. Plaintiff is serving this motion on him concurrently at the address and email he uses in *Serrato*, and invites a stipulation that he will accept service. If he stipulates, the proposed order can enter as agreed. If he does not, the Court should grant the motion.

IV.

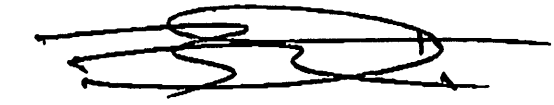
RELIEF REQUESTED

Plaintiff requests that the Court: (1) direct that DAG Li is authorized and ordered to accept service on behalf of Meza-Gonzalez; (2) provide that Plaintiff's delivery to Li, by email at Haiyang.Li@doj.ca.gov and first-class mail at 300 South Spring Street, Suite 1702, Los Angeles, California 90013-1230, of the issued Meza-Gonzalez summons (Dkt. 3), the operative First Amended Complaint (Dkt. 5), and the CMC/ADR order (Dkt. 4), constitutes completed service

under Rule 4(e)(1) and section 413.30 as of the email date; (3) direct Plaintiff to file a Rule 4(l) proof of that delivery within seven days; (4) alternatively, authorize the same delivery as alternative service, or extend Rule 4(m) for good cause; and (5) confirm that Melano's completed service is unaffected. A declaration, Exhibits A through C, and a proposed order accompany this motion.

Dated: September 1, 2026

Respectfully submitted,



BRENDAN NGWA NFORBI

Plaintiff, In Propria Persona